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## Appeal Decision

Site visit made on 4 August 2026

by **SE Hughes BA (Hons) PGDip MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 3 September 2026

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### Appeal Ref: 6007287

**Great Meadow Barn, Copes Farm, Spurlands End Road, Great Kingshill,  
Buckinghamshire HP15 6HZ**

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
  - The appeal is made by Mr and Mrs A Ashton against the decision of Buckinghamshire Council.
  - The application Ref is PL/25/3313/FA.
  - The development proposed is the erection of a storage building for agricultural/land management equipment.
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### Decision

1. The appeal is dismissed.

### Preliminary Matters

2. The Council's second reason for refusal states, "*The proposed rooflights to the stable building are not considered appropriate*". During the appeal process the appellant has clarified that the building would not be a stable building and no rooflights are proposed. Rather it is proposed to have solar panels on the southeast roof slope. The Council has not commented nor refuted on the appellant's clarification. Therefore, given that the description of the development refers to the building being a storage building for agricultural/land management equipment, and the application documents and the plans similarly refer to this use and the incorporation of a solar array on the roof, I have determined the appeal on the basis of the development applied for, namely a storage building for agricultural/land management equipment which incorporates solar roof panels.
3. During the course of the appeal, a Precautionary Working Method Statement (PWMS) was submitted by the appellant seeking to address the Council's concerns regarding the potential impact on great crested newts. Since the Council has commented on the additional information, my decision to accept the additional document would not be prejudicial to it and I have therefore taken it into account.
4. On 17 August 2026 the Government published the revised National Planning Policy Framework (the Framework). Whilst the format of the Framework is modified with the introduction of national decision-making policies alongside plan making policies, the policies pertinent to this appeal, including those relating to development for agriculture remain unchanged, except for its relocation under policy GB7. Therefore, there was no need to invite further comments from the appellant or the Council on the revisions to the Framework as they do not affect this appeal.

## Main Issues

5. The main issues in this appeal are:

- whether the proposal would be inappropriate development in the Green Belt, having regard to the Framework and relevant development plan policies.
- the effect of the proposal on the character and appearance of the area, having particular regard to the setting of nearby listed buildings and the location of the site within the Chilterns National Landscape (formerly referred to as the Chilterns Area of Outstanding Natural Beauty); and,
- the effect of the proposal on biodiversity.

## Reasons

### *Green Belt*

6. The appeal site lies within the Green Belt. Policy GB7 of the Framework identifies categories of development which are not inappropriate in the Green Belt and should not be regarded as harmful to it or be required to demonstrate very special circumstances. One of the exceptions is development which is for agriculture.
7. Similarly, Policy GB2 of the Chiltern District Local Plan adopted 1 September 1997 (Including alterations adopted 29 May 2001) Consolidated September 2007 & November 2011 (CDLP) requires new buildings to be reasonably required for agricultural purposes with 'agriculture' having the meaning given in section 336 (1) of the Town and Country Planning Act 1990 (as amended) (the Act). While the Framework is without the qualification that the building should be reasonably required for agricultural purposes, I find that Policy GB2 is generally consistent with the Framework.
8. There are presently no agricultural buildings on the landholding surrounding the appeal site which extends to over 2.35ha. I observed that the land was laid out as meadow land, which is included under the definition of agriculture in the Act. Although there are no livestock or agricultural machinery on the land, and the application is not supported by a detailed Agricultural Appraisal, the appellant has highlighted the ability of the landholding to produce a grass crop, the need for the proposed building to securely store farm machinery, including a tractor, flail mower, finishing topper, rotavator and trailer and the appellant's future intention to practise "small holding farming" on the landholding.
9. Therefore, from observations on my site visit and the information before me, there is no compelling evidence that casts clear doubt that the land is not in use for agriculture and given the appellant's rural crime evidence, which highlights the rise in thefts of farm vehicles and their parts, I understand the appellant's desire to obtain planning permission for a farm building before bringing machinery and livestock onto the land.
10. Being a small, low building subdivided with 5 double door entrances, the building does not have a typical agricultural appearance, resembling the neighbouring property's 4 bay garage building. However, it could be used for the purpose of storing agricultural equipment and machinery, including a small tractor, and is of a size commensurate with the size of the appellant's agricultural landholding. Furthermore, a planning condition limiting the use of the building to agricultural

purposes would ensure that the building could not be used for domestic or other commercial purposes.

11. Therefore, based on the evidence before me, I am satisfied that the proposal is for a building for agriculture purposes to allow the storage of agricultural equipment. As such it would therefore fall within the exception of development which is for agriculture at Policy GB7 of the Framework and would not be inappropriate development in the Green Belt and would accord with the provisions of Policy GB2 of the CDLP.
12. Since I have found that the development is not inappropriate, matters which have been discussed by the main parties regarding the effect of the proposal on the openness of the Green Belt, and whether or not there are other considerations that amount to very special circumstances, are not matters for further assessment in this decision.

### *Character and Appearance*

13. The appeal site is located opposite Great Meadow Barn in the Chilterns National Landscape (CNL), an area designated for its landscape and scenic beauty. Next to Great Meadow Barn are a number of listed buildings which include the grade II listed Copes Farmhouse, which together with Great Meadow Barn and other surrounding buildings form a tightly packed farmstead.
14. Copes Farmhouse dates from the 16<sup>th</sup> and late 18<sup>th</sup> century and has a late 18<sup>th</sup> century brick front, old tile roofs and a 19<sup>th</sup> century rear wing constructed of brick and flint. The gables of main house are tiled or roughcast.
15. The cowsheds, stables and haylofts to the north west of Copes Farmhouse (Great Meadow Barn) and a further barn to the west are also grade II listed buildings. Dating from the 19<sup>th</sup> century the cowsheds, stables and haylofts are constructed from flint and brick with tile roofs. The earlier 18<sup>th</sup> century timber framed and weather boarded barn also has an old tile roof. In so far as is relevant to the proposal, the special interest and significance of the aforementioned listed buildings is derived in part by their age, traditional construction and good quality vernacular materials.
16. Given its proximity to Copes Farmhouse and the cowsheds, stables and haylofts to north west of Copes Farmhouse, the appeal site is important to their setting. As outlined above, the style of the proposed building would resemble the neighbouring property's garage building. It would therefore not be out of keeping with development already in situ at the farmstead. The adjacent garage building also includes a solar array of a similar size and appearance to the proposal. The installation of such infrastructure, particularly on modern buildings, is supported in the Chilterns Buildings Design Guide, February 2010 (CBDG)<sup>1</sup>. In this context, I find that the provision of the solar array would accord with the design guidance in the CBDG.
17. However, unlike the neighbouring garage building and the other farmstead buildings, which feature good quality materials, such as slate and tile roofs, the proposed felt roof, would appear incongruous and out of place. Whilst it is suggested that the felt itself would be high quality, and from some vantage points

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<sup>1</sup> Paragraph 3.46 of the Chilterns Buildings Design Guide, February 2010.

taking account of its shallow pitch and low height, the roof would be screened by the existing garage, the roof would still be a visually prominent feature, which would detract from the farmstead's traditional, palette of materials, undermining the setting and unified appearance of the nearby listed and unlisted buildings at the farmstead. Given its position relative to the listed buildings, I find the harm to be less than substantial in this instance, and that it would be at the lower end of the spectrum of less than substantial harm, nevertheless, even less than substantial harm to a designated heritage asset carries great weight.

18. My findings above are reinforced by the CBDG, which indicates in particularly sensitive areas, such as sites close to listed buildings, like the appeal site, traditional materials should be employed for smaller buildings<sup>2</sup>.
19. I have considered that appellant's point that other agricultural buildings found in rural areas including National Landscapes (NL) have similar felt roofs. Whilst I accept this is true, in the more sensitive area around the appeal site, traditional roof tiles predominate, therefore the existence of such buildings in the wider countryside including NL, does not outweigh the harm I have found.
20. Policy HE4 of the Framework advises that *any harm* to a designated heritage asset (including from development within its setting) requires *clear and convincing justification* (my emphasis) and Policy HE6 of the Framework advises that this harm should be weighed against the public benefits of the proposal.
21. Whilst the public benefits associated with renewable energy installations are substantial<sup>3</sup>, given the small scale of the solar array, the public benefits arising from the incorporation of renewable energy in this case would be limited. It would therefore not be sufficient to outweigh the degree of harm I have identified to the heritage assets. As a consequence, I conclude that the proposal would harm the setting of Copes Farmhouse and the cowsheds, stables and haylofts to the north west of Copes Farmhouse and would fail to conserve the simple rural character of the CNL. On that basis it would fail to satisfy the requirements of the Framework and would conflict with Policies GC1 and LSQ1 of the CDLP and Policies CS20 and CS22 of the Core Strategy for Chiltern District adopted November 2011 (CSCD). These policies require development to be of a high standard of design, that conserves and enhances the special character of the NL, using matching or similar materials where certain facing materials predominate.

### *Biodiversity*

22. The PWMS acknowledges that the Preliminary Ecological Assessment and BNG Assessment, July 2025 indicated that an adjacent offsite pond (referenced TN2) returned a poor Habitat Suitability Index (HSI) assessment, but an eDNA survey indicated great crested newts were likely present within it. However elsewhere the PWMS indicates that no ponds are present within 250m of the site boundary<sup>4</sup>.
23. As it is not clearly and consistently shown that the baseline habitat information used in the PWMS takes account of the likely presence of great crested newts in pond TN2, it casts doubt on the accuracy of the PWMS and the adequacy of the measures it contains to protect great crested newts.

<sup>2</sup> Paragraph 4.24 of the Chilterns Buildings Design Guide, February 2010

<sup>3</sup> Policy CC2 of the NPPF.

<sup>4</sup> Paragraph 4.7 of appellants Precautionary Working Method Statement, February 2026.

24. Therefore, based on the information provided, I am not satisfied, that the proposal's effects on biodiversity have been properly addressed.
25. Accordingly, I conclude that the proposal has not demonstrated that it would be acceptable in terms of its impact on biodiversity interests. On that basis it would conflict with Policy CS24 of the CSCD which, amongst other things, requires development proposals protect biodiversity.

### **Conclusion**

26. For the reasons given above, I conclude that the proposal would conflict with the development plan and there are no material considerations to outweigh that conflict. Therefore, I conclude that the appeal should be dismissed.

*SE Hughes*

INSPECTOR